

**23CV46824 - WILLIAM CHAMBERLAIN, et al.,
Plaintiff,**

v.

**CALAVERAS COUNTY BOARD OF
SUPERVISORS, et al.
Defendants.**

TENTATIVE RULING

On July 18, 2023, Plaintiffs William, Angela, Violet, Bruno, and Gideon Chamberlain ("Plaintiffs") filed the instant lawsuit against Calaveras County Board of Supervisors, Calaveras Child Protection Services, Calaveras Cannabis Control, Calaveras Sheriffs Department and Judge David Sanders ("Defendants.")

On November 7, 2023, the Court granted Defendants' motion to quash.¹ Defendants filed a proof of service of that Order on William Chamberlain on November 9, 2023.

At the Case Management Conferences ("CMC") held on November 22, 2023, May 1, 2024, July 7, 2024, and January 8, 2025, Plaintiffs were informed that that proper service had not been effectuated. At the January 8, 2025 CMC, the Court ordered Plaintiffs to serve the summons and Complaint on all Defendants by the next CMC scheduled for July 9, 2025.²

As of this hearing, Plaintiffs have not filed proof of service of the summons and complaint.

California Rules of Court California Rules of Court, rule 3.110(b) provides:

The complaint must be served on all named defendants and proofs of service on those defendants must be filed with the court within 60 days after the filing of the complaint. When the complaint is amended to add a defendant, the added defendant must be served and proof of service must be filed within 30 days after the filing of the amended complaint.

Further, pursuant to Code Civil Procedure section 583.420(a)(1), provides for discretionary dismissal if "service is not made within two years after the action is commenced against the defendant."

¹ No attempt at serving the Sheriff's Department was made and accordingly the motion to quash did not apply to that Defendant.

² Due to various judicial recusals, that July 9, 2025 was vacated and moved to the current hearing date.

The Complaint was filed on July 18, 2023. It is not more than two years since the action was commenced and service has not been effectuated on any Defendants.

Accordingly, the Court orders Plaintiff to appear at a hearing on **Tuesday, September 23, 2025 at 1:30 p.m. in Dept. 3.** to show cause as to why service has not been completed. The failure to appear at the hearing or to show cause will result in the matter being immediately dismissed, without prejudice.